

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506584	LOPEZ LOPEZ VS RESTREPO	MOTION TO COMPEL BY JUAN LOPEZ LOPEZ

Tentative Ruling: No tentative ruling. Motion was vacated by moving party.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2600950	DOE VS WILMA AND FRIEDA'S, INC., A CALIFORNIA CORPORATION	ORDER TO SHOW CAUSE RE: USE OF PSEUDONYM AS TO DAVIT HOVSEPYAN, JOHN DOE, TIFFANY B TELLO

Tentative Ruling: “Because of the inherently sensitive nature of some proceedings, statutes specifically allow for keeping certain parties' identities confidential.” (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110.) “Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest.” (*Id.*)

“Among the guarantees of the First Amendment to the United States Constitution is that court proceedings are open and public. [Citation.] Public access to court proceedings is essential to a functioning democracy. It promotes trust in the integrity of the court system, and it exposes abuses of judicial power to public scrutiny. [Citation.] The right of public access applies not only to criminal cases, but also to civil proceedings like this one. [Citation.] And the right to access court proceedings necessarily includes the right to know the identity of the parties. [Citation.]” *Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110-111.)

“Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public's right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur ‘only in the rarest of circumstances.’ [Citation.]” (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 111-112.)

As Plaintiff's identity is known to Defendants, proceeding anonymously would not intrude on their rights. (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110.) Therefore, the only factor the court must consider is whether Plaintiff's anonymity outweighs the public's First Amendment interests in knowing the party's identity.

In ruling on a motion for anonymity, the court must consider all relevant evidence likely to affect the answer, but the moving party seeking anonymity has the burden. (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 112.)

Plaintiff's declaration states that he fears that he may face further harassment and discrimination if he finds employment elsewhere and disclosure of his name would affect